

24PR00905 Estate of Philip David Kwait 15, 2024

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Motion for Summary Adjudication

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Motion for Summary Adjudication

Tentative Ruling: NO APPEARANCES REQUIRED. The Court is prepared to issue a substantive ruling on the papers before it. However, the opposition and the separate statement in opposition refer to evidentiary objections, but no evidentiary objections have been filed with the court. As a result there are no evidentiary objections presently before Court. See California Rules of Court Rules 3.1352 and 3.1354. That said, it is clear they were served on the moving party and that the moving party had an opportunity to review and respond to the objections. The Court would like the same opportunity so that any ruling on this motion is a result of a full review and not merely the product of what appears to be a procedural error. Therefore, this matter is CONTINUED to August 6, 2026 at 3:00 p.m. in Dept. 63 for hearing on the motion for summary adjudication. The objections that were previously served by the opposing party shall be filed with the court no later than Friday, July 24, 2026, or shall be deemed waived.

End of Tentative Ruling

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